Reply to Objection 3: After the believer has married, the marriage tie is dissolved on either side, because the marriage is not imperfect as to the bond, although it is sometimes imperfect as to its effect. Hence it is in punishment of the unbelieving wife rather than by virtue of the previous marriage that she is forbidden to marry again. If however she be afterwards converted, she may be allowed by dispensation to take another husband, should her husband have taken another wife.

Reply to Objection 4: The husband ought not to take a vow of continence nor enter into a second marriage, if after his conversion there be a reasonable hope of the conversion of his wife, because the wife's conversion would be more difficult if she knew she was deprived of her husband. If however there be no hope of her conversion, he can take Holy orders or enter religion, having first besought his wife to be converted. And then if the wife be converted after her husband has received Holy orders, her husband must not be restored to her, but she must take it as a punishment of her tardy conversion that she is deprived of her husband.

Reply to Objection 5: The bond of fatherhood is not dissolved by disparity of worship, as the marriage bond is: wherefore there is no comparison between an inheritance and a wife.

Whether other sins dissolve marriage?

Objection 1: It would seem that other sins besides unbelief dissolve marriage. For adultery is seemingly more directly opposed to marriage than unbelief is. But unbelief dissolves marriage in a certain case so that it is lawful to marry again. Therefore adultery has the same effect.

Objection 2: Further, just as unbelief is spiritual fornication, so is any kind of sin. If, then unbelief dissolves marriage because it is spiritual fornication, for the same reason any kind of sin will dissolve marriage.

Objection 3: Further, it is said (Mat. 5:30): "If thy right hand scandalize thee, pluck it off and cast it from thee," and a gloss of Jerome says that "by the hand and the right eye we may understand our brother, wife, relatives and children." Now these become obstacles to us by any kind of sin. Therefore marriage can be dissolved on account of any kind of sin.

Objection 4: Further, covetousness is idolatry according to Eph. 5:5. Now a wife may be put away on account of idolatry. Therefore in like manner she can be put away on account of covetousness, as also on account of other sins graver than covetousness.

Objection 5: Further, the Master says this expressly (Sent. iv, D, 30).

On the contrary, It is said (Mat. 5:32): "Whosoever shall put away his wife, excepting for the cause of fornication, maketh her to commit adultery."

Further, if this were true, divorces would be made all day long, since it is rare to find a marriage wherein one of the parties does not fall into sin.

I answer that, Bodily fornication and unbelief have a special contrariety to the goods of marriage, as stated above (A[3]). Hence they are specially effective in dissolving marriages. Nevertheless it must be observed that marriage is dissolved in two ways. In one way as to the marriage tie, and thus marriage cannot be dissolved after it is ratified, neither by unbelief nor by adultery. But if it be not ratified, the tie is dissolved, if the one party remain in unbelief, and the other being converted to the faith has married again. On the other hand the aforesaid tie is not dissolved by adultery, else the unbeliever would be free to give a bill of divorce to his adulterous wife, and having put her away, could take another wife, which is false. In another way marriage is

dissolved as to the act, and thus it can be dissolved on account of either unbelief or fornication. But marriage cannot be dissolved even as to the act on account of other sins, unless perchance the husband wish to cease from intercourse with his wife in order to punish her by depriving her of the comfort of his presence.

Reply to Objection 1: Although adultery is opposed to marriage as fulfilling an office of nature, more directly than unbelief, it is the other way about if we consider marriage as a sacrament of the Church, from which source it derives perfect stability, inasmuch as it signifies the indissoluble union of Christ with the Church. Wherefore the marriage that is not ratified can be dissolved as to the marriage tie on account of unbelief rather than on account of adultery.

Reply to Objection 2: The primal union of the soul to God is by faith, and consequently the soul is thereby espoused to God as it were, according to Osee 2:20, "I will espouse thee to Me in faith." Hence in Holy Writ idolatry and unbelief are specially designated by the name of fornication: whereas other sins are called spiritual fornications by a more remote signification.

Reply to Objection 3: This applies to the case when the wife proves a notable occasion of sin to her husband, so that he has reason to fear his being in danger: for then the husband can withdraw from living with her, as stated above (A[5]).

Reply to Objection 4: Covetousness is said to be idolatry on account of a certain likeness of bondage, because both the covetous and the idolater serve the creature rather than the Creator; but not on account of likeness of unbelief, since unbelief corrupts the intellect whereas covetousness corrupts the affections.

Reply to Objection 5: The words of the Master refer to betrothal, because a betrothal can be rescinded on account of a subsequent crime. Or, if he is speaking of marriage, they must be referred to the severing of mutual companionship for a time, as stated above, or to the case when the wife is unwilling to cohabit except on the condition of sinning, for instance, if she were to say: "I will not remain your wife unless you amass wealth for me by theft," for then he ought to leave her rather than thieve.

OF WIFE-MURDER (TWO ARTICLES)

We must now consider wife-murder, under which head there are two points of inquiry:

(1) Whether in a certain case it is lawful to kill one's wife?

(2) Whether wife-murder is an impediment to marriage?

Whether it is lawful for a man to kill his wife if she be discovered in the act of adultery?

Objection 1: It would seem lawful for a man to kill his wife if she be discovered in the act of adultery. For the Divine law commanded adulterous wives to be stoned. Now it is not a sin to fulfill the Divine law. Neither therefore is it a sin to kill one's own wife if she be an adulteress.

Objection 2: Further, that which the law can rightly do, can be rightly done by one whom the law has commissioned to do it. But the law can rightly kill an adulterous wife or any other person deserving of death. Since then the law has commissioned the husband to kill his wife if she be discovered in the act of adultery, it would seem that he can rightly do so.

Objection 3: Further, the husband has greater power over his adulterous wife than over the man who committed adultery with her. Now if the husband strike a cleric whom he found with his wife he is not excommunicated. Therefore it would seem lawful for him even to kill his own wife if she be discovered in adultery.

Objection 4: Further, the husband is bound to correct his wife. But correction is given by inflicting a just punishment. Since then the just punishment of adultery is death, because it is a capital sin, it would seem lawful for a husband to kill his adulterous wife.

On the contrary, It is stated in the text (Sent. iv, D, 37) that "the Church of God is never bound by the laws of this world, for she has none but a spiritual sword." Therefore it would seem that he who wishes to belong to the Church cannot rightly take advantage of the law which permits a man to kill his wife.

Further, husband and wife are judged on a par. But it is not lawful for a wife to kill her husband if he be discovered in adultery. Neither therefore may a husband kill his wife.

I answer that, It happens in two ways that a husband kills his wife. First, by a civil judgment; and thus there is no doubt that a husband, moved by zeal for justice and not by vindictive anger or hatred can, without sin, bring a criminal accusation of adultery upon his wife before a secular court, and demand that she receive capital punishment as appointed by the law; just as it is lawful to accuse a person of murder or any other crime. Such an accusation however cannot be made in an ecclesiastical court, because, as stated in the text (Sent. iv, D, 37), the Church does not wield a material sword. Secondly, a husband can kill his wife himself without her being convicted in court, and thus to kill her outside of the act of adultery is not lawful, neither according to civil law nor according to the law of conscience, whatever evidence he may have of her adultery. The civil law however considers it, as though it were lawful, that he should kill her in the very act, not by commanding him to do so, but by not inflicting on him the punishment for murder, on account of the very great provocation which the husband receives by such a deed to kill his wife. But the Church is not bound in this matter by human laws, neither does she acquit him of the debt of eternal punishment, nor of such punishment as may be awarded him by an ecclesiastical tribunal for the reason that he is quit of any punishment to be inflicted by a secular court. Therefore in no case is it lawful for a husband to kill his wife on his own authority.

Reply to Objection 1: The law has committed the infliction of this punishment not to private individuals, but to public persons, who are deputed to this by their office. Now the husband is not his wife's judge: wherefore he may not kill her, but may accuse her in the judge's presence.

Reply to Objection 2: The civil law has not commissioned the husband to kill his wife by commanding him to do so, for thus he would not sin, just as the judge's deputy does not sin by killing the thief condemned to death: but it has permitted this by not punishing it. For which reason it has raised certain obstacles to prevent the husband from killing his wife.

Reply to Objection 3: This does not prove that it is lawful simply, but that it is lawful as regards immunity from a particular kind of punishment, since excommunication is also a kind of punishment.

Reply to Objection 4: There are two kinds of community: the household, such as a family; and the civil community, such as a city or kingdom. Accordingly, he who presides over the latter kind of community, a king for instance, can punish an individual both by correcting and by exterminating him, for the betterment of the community with whose care he is charged. But he who presides over a community of the first kind, can inflict only corrective punishment, which does not extend beyond the limits of amendment, and these are exceeded by the punishment of death.

Wherefore the husband who exercises this kind of control over his wife may not kill her, but he may accuse or chastise her in some other way.

Whether wife-murder is an impediment to marriage?

Objection 1: It would seem that wife-murder is not an impediment to marriage. For adultery is more directly opposed to marriage than murder is. Now adultery is not an impediment to marriage. Neither therefore is wife-murder.

Objection 2: Further, it is a more grievous sin to kill one's mother than one's wife, for it is never lawful to strike one's mother, whereas it is sometimes lawful to strike one's wife. But matricide is not an impediment to marriage. Neither therefore is wife-murder.

Objection 3: Further, it is a greater sin for a man to kill another man's wife on account of adultery than to kill his own wife, inasmuch as he has less motive and is less concerned with her correction. But he who kills another man's wife is not hindered from marrying. Neither therefore is he who kills his own wife.

Objection 4: Further, if the cause be removed, the effect is removed. But the sin of murder can be removed by repentance. Therefore the consequent impediment to marriage can be removed also: and consequently it would seem that after he has done penance he is not forbidden to marry.

On the contrary, A canon (caus. xxxiii, qu. ii, can. Interfectores) says: "The slayers of their own wives must be brought back to penance, and they are absolutely forbidden to marry." Further, in whatsoever a man sins, in that same must he be punished. But he who kills his wife sins against marriage. Therefore he must be punished by being deprived of marriage.

I answer that, By the Church's decree wife-murder is an impediment to marriage. Sometimes however it forbids the contracting of marriage without voiding the contract, when to wit the husband kills his wife on account of adultery or even through hatred; nevertheless if there be fear lest he should prove incontinent, he may be dispensed by the Church so as to marry lawfully. Sometimes it also voids the contract, as when a man kills his wife in order to marry her with whom he has committed adultery, for then the law declares him simply unfit to marry her, so that if he actually marry her his marriage is void. He is not however hereby rendered simply unfit by law in relation to other women: wherefore if he should have married another, although he sin by disobeying the Church's ordinance, the marriage is nevertheless not voided for this reason.

Reply to Objection 1: Murder and adultery in certain cases forbid the contracting of marriage and void the contract, as we say here in regard to wife-murder, and shall say further on (Sent. iv, Q[62], A[2]) in regard to adultery. We may also reply that wife-murder is contrary to the substance of wedlock, whereas adultery is contrary to the good of fidelity due to marriage. Hence adultery is not more opposed to marriage than wife-murder, and the argument is based on a false premiss.

Reply to Objection 2: Simply speaking it is a more grievous sin to kill one's mother than one's wife, as also more opposed to nature, since a man reveres his mother naturally. Consequently he is less inclined to matricide and more prone to wife-murder; and it is to repress this proneness that the Church has forbidden marriage to the man who has murdered his wife.

Reply to Objection 3: Such a man does not sin against marriage as he does who kills his own wife; wherefore the comparison fails.

Reply to Objection 4: It does not follow that because guilt has been remitted therefore the entire punishment is remitted, as evidenced by irregularity. For repentance does not restore a man to his former dignity, although it can restore him to his former state of grace, as stated above (Q[38], A[1], ad 3).

OF THE IMPEDIMENT TO MARRIAGE, ARISING FROM A SOLEMN VOW (THREE ARTICLES)

We must next consider the impediments which supervene to marriage. We shall consider (1) the impediment which affects an unconsummated marriage, namely a solemn vow: (2) the impediment which affects a consummated marriage, namely fornication. Under the first head there are three points of inquiry:

(1) Whether either party after the marriage has been consummated can enter religion without the other's consent?

(2) Whether they can enter religion before the consummation of the marriage?

(3) Whether the wife can take another husband if her former husband has entered religion before the consummation of the marriage?

Whether one party after the marriage has been consummated can enter religion without the other's consent?

Objection 1: It would seem that even after the marriage has been consummated one consort can enter religion without the other's consent. For the Divine law ought to be more favorable to spiritual things than human law. Now human law has allowed this. Therefore much more should the Divine law permit it.

Objection 2: Further, the lesser good does not hinder the greater. But the married state is a lesser good than the religious state, according to 1 Cor. 7:38. Therefore marriage ought not to hinder a man from being able to enter religion.

Objection 3: Further, in every form of religious life there is a kind of spiritual marriage. Now it is lawful to pass from a less strict religious order to one that is stricter. Therefore it is also allowable to pass from a less strict---namely a carnal---marriage to a stricter marriage, namely that of the religious life, even without the wife's consent.

On the contrary, Married persons are forbidden (1 Cor. 7:5) to abstain from the use of marriage even for a time without one another's consent, in order to have time for prayer.

Further, no one can lawfully do that which is prejudicial to another without the latter's consent. Now the religious vow taken by one consort is prejudicial to the other, since the one has power over the other's body. Therefore one of them cannot take a religious vow without the other's consent.

I answer that, No one can make an offering to God of what belongs to another. Wherefore since by a consummated marriage the husband's body already belongs to his wife, he cannot by a vow of continence offer it to God without her consent.

Reply to Objection 1: Human law considers marriage merely as fulfilling an office of nature: whereas the Divine law considers it as a sacrament, by reason of which it is altogether indissoluble. Hence the comparison fails.

Reply to Objection 2: It is not unreasonable that a greater good be hindered by a lesser which is contrary to it, just as good is hindered by evil.

Reply to Objection 3: In every form of religious life marriage is contracted with one person, namely Christ; to Whom, however, a person contracts more obligations in one religious order than in another. But in carnal marriage and religious marriage the contract is not with the same person: wherefore that comparison fails.

Whether before the marriage has been consummated one consort can enter religion without the other's consent?

Objection 1: It would seem that even before the marriage has been consummated one consort cannot enter religion without the other's consent. For the indissolubility of marriage belongs to the sacrament of matrimony, inasmuch, namely, as it signifies the union of Christ with the Church. Now marriage is a true sacrament before its consummation, and after consent has been expressed in words of the present. Therefore it cannot be dissolved by one of them entering religion.

Objection 2: Further, by virtue of the consent expressed in words of the present, the one consort has given power over his body to the other. Therefore the one can forthwith ask for the marriage debt, and the other is bound to pay: and so the one cannot enter religion without the other's consent.

Objection 3: Further, it is said (Mat. 19:6): "What God hath joined together let no man put asunder." But the union which precedes marital intercourse was made by God. Therefore it cannot be dissolved by the will of man.

On the contrary, According to Jerome [*Prolog. in Joan.] our Lord called John from his wedding.

I answer that, Before marital intercourse there is only a spiritual bond between husband and wife, but afterwards there is a carnal bond between them. Wherefore, just as after marital intercourse marriage is dissolved by carnal death, so by entering religion the bond which exists before the consummation of the marriage is dissolved, because religious life is a kind of spiritual death, whereby a man dies to the world and lives to God.

Reply to Objection 1: Before consummation marriage signifies the union of Christ with the soul by grace, which is dissolved by a contrary spiritual disposition, namely mortal sin. But after consummation it signifies the union of Christ with the Church, as regards the assumption of human nature into the unity of person, which union is altogether indissoluble.

Reply to Objection 2: Before consummation the body of one consort is not absolutely delivered into the power of the other, but conditionally, provided neither consort meanwhile seek the fruit of a better life. But by marital intercourse the aforesaid delivery is completed, because then each of them enters into bodily possession of the power transferred to him. Wherefore also before consummation they are not bound to pay the marriage debt forthwith after contracting marriage by words of the present, but a space of two months is allowed them for three reasons. First that they may deliberate meanwhile about entering religion; secondly, to prepare what is necessary for the solemnization of the wedding. thirdly, lest the husband think little of a gift he has not longed to possess (cap. Institutum, caus. xxvi, qu. ii).

Reply to Objection 3: The marriage union, before consummation, is indeed perfect as to its primary being, but is not finally perfect as to its second act which is operation. It is like bodily possession and consequently is not altogether indissoluble.

Whether the wife may take another husband if her husband has entered religion before the consummation of the marriage?

Objection 1: It would seem that the wife may not take another husband, if her husband has entered religion before the consummation of the marriage. For that which is consistent with marriage does not dissolve the marriage tie. Now the marriage tie still remains between those who equally take religious vows. Therefore by the fact that one enters religion, the other is not freed from the marriage tie. But as long as she remains tied to one by marriage, she cannot marry another. Therefore, etc.

Objection 2: Further, after entering religion and before making his profession the husband can return to the world. If then the wife can marry again when her husband enters religion, he also can marry again when he returns to the world: which is absurd.

Objection 3: Further, by a new decree (cap. Non solum, de regular. et transeunt.) a profession, if made before the expiry of a year, is accounted void. Therefore if he return to his wife after making such a profession, she is bound to receive him. Therefore neither by her husband's entry into religion, nor by his taking a vow, does the wife receive the power to marry again.

On the contrary, No one can bind another to those things which belong to perfection. Now continence is of those things that belong to perfection. Therefore a wife is not bound to continence on account of her husband entering religion, and consequently she can marry.

I answer that, Just as bodily death of the husband dissolves the marriage tie in such a way that the wife may marry whom she will, according to the statement of the Apostle (1 Cor. 7:39); so too after the husband's spiritual death by entering religion, she can marry whom she will.

Reply to Objection 1: When both consorts take a like vow of continence, neither renounces the marriage tie, wherefore it still remains: but when only one takes the vow, then for his own part he renounces the marriage tie, wherefore the other is freed therefrom.

Reply to Objection 2: A person is not accounted dead to the world by entering religion until he makes his profession, and consequently his wife is bound to wait for him until that time.

Reply to Objection 3: We must judge of a profession thus made before the time fixed by law, as of a simple vow. Wherefore just as when the husband has taken a simple vow his wife is not bound to pay him the marriage debt, and yet has not the power to marry again, so is it in this case.

OF THE IMPEDIMENT THAT SUPERVENES TO MARRIAGE AFTER ITS CONSUMMATION, NAMELY FORNICATION (SIX ARTICLES)

We must now consider the impediment that supervenes upon marriage after its consummation, namely fornication, which is an impediment to a previous marriage as regards the act, although the marriage tie remains. Under this head there are six points of inquiry:

(1) Whether it is lawful for a husband to put his wife away on account of fornication?

(2) Whether he is bound to do so?

(3) Whether he may put her away at his own judgment?

(4) Whether in this matter husband and wife are of equal condition?

(5) Whether, after being divorced, they must remain unmarried?

(6) Whether they can be reconciled after being divorced?

Whether it is lawful for a husband to put away his wife on account of fornication?

Objection 1: It would seem unlawful for a husband to put away his wife on account of fornication. For we must not return evil for evil. But the husband, by putting away his wife on account of fornication, seemingly returns evil for evil. Therefore this is not lawful.

Objection 2: Further, the sin is greater if both commit fornication, than if one only commits it. But if both commit fornication, they cannot be divorced on that account. Neither therefore can they be, if only one commits fornication.

Objection 3: Further, spiritual fornication and certain other sins are more grievous than carnal fornication. But separation from bed cannot be motived by those sins. Neither therefore can it be done on account of fornication.

Objection 4: Further, the unnatural vice is further removed from the marriage goods than fornication is, the manner of which is natural. Therefore it ought to have been a cause of separation rather than fornication.

On the contrary, are the words of Mat. 5:32.

Further, one is not bound to keep faith with one who breaks his faith. But a spouse by fornication breaks the faith due to the other spouse. Therefore one can put the other away on account of fornication.

I answer that, Our Lord permitted a man to put away his wife on account of fornication, in punishment of the unfaithful party and in favor of the faithful party, so that the latter is not bound to marital intercourse with the unfaithful one. There are however seven cases to be excepted in which it is not lawful to put away a wife who has committed fornication, when either the wife is not to be blamed, or both parties are equally blameworthy. The first is if the husband also has committed fornication; the second is if he has prostituted his wife; the third is if the wife, believing her husband dead on account of his long absence, has married again; the fourth is if another man has fraudulently impersonated her husband in the marriage-bed; the fifth is if she be overcome by force; the sixth is if he has been reconciled to her by having carnal intercourse with her after she has committed adultery; the seventh is if both having been married in the state of unbelief, the husband has given his wife a bill of divorce and she has married again; for then if both be converted the husband is bound to receive her back again.

Reply to Objection 1: A husband sins if through vindictive anger he puts away his wife who has committed fornication, but he does not sin if he does so in order to avoid losing his good name, lest he seem to share in her guilt, or in order to correct his wife's sin, or in order to avoid the uncertainty of her offspring.

Reply to Objection 2: Divorce on account of fornication is effected by the one accusing the other. And since no one can accuse who is guilty of the same crime, a divorce cannot be pronounced when both have committed fornication, although marriage is more sinned against when both are guilty of fornication that when only one is.

Reply to Objection 3: Fornication is directly opposed to the good of marriage, since by it the certainty of offspring is destroyed, faith is broken, and marriage ceases to have its signification when the body of one spouse is given to several others. Wherefore other sins, though perhaps they be more grievous than fornication, are not motives for a divorce. Since, however, unbelief which is called spiritual fornication, is also opposed to the good of marriage consisting in the rearing of the offspring to the worship of God, it is also a motive for divorce, yet not in the same way as bodily

fornication. Because one may take steps for procuring a divorce on account of one act of carnal fornication, not, however, on account of one act of unbelief, but on account of inveterate unbelief which is a proof of obstinacy wherein unbelief is perfected.

Reply to Objection 4: Steps may be taken to procure a divorce on account also of the unnatural vice: but this is not mentioned in the same way, both because it is an unmentionable passion, and because it does not so affect the certainty of offspring.

Whether the husband is bound by precept to put away his wife when she is guilty of fornication?

Objection 1: It would seem that the husband is bound by precept to put away his wife who is guilty of fornication. For since the husband is the head of his wife, he is bound to correct his wife. Now separation from bed is prescribed as a correction of the wife who is guilty of fornication. Therefore he is bound to separate from her.

Objection 2: Further, he who consents with one who sins mortally, is also guilty of mortal sin. Now the husband who retains a wife guilty of fornication would seem to consent with her, as stated in the text (Sent. iv, D, 35). Therefore he sins unless he puts her away.

Objection 3: Further, it is written (1 Cor. 6:16): "He who is joined to a harlot is made one body." Now a man cannot at once be a member of a harlot and a member of Christ (1 Cor. 6:15). Therefore the husband who is joined to a wife guilty of fornication ceases to be a member of Christ, and therefore sins mortally.

Objection 4: Further, just as relationship voids the marriage tie, so does fornication dissolve the marriage-bed. Now after the husband becomes cognizant of his consanguinity with his wife, he sins mortally if he has carnal intercourse with her. Therefore he also sins mortally if he does so after knowing her to be guilty of fornication.

Objection 5: On the contrary, A gloss on 1 Cor. 7:11, "Let not the husband put away his wife" says that "Our Lord permitted a wife to be put away on account of fornication." Therefore it is not a matter of precept.

Objection 6: Further, one can always pardon the sin that another has committed against oneself. Now the wife, by committing fornication, sinned against her husband. Therefore the husband may spare her by not putting her away.

I answer that, The putting away of a wife guilty of fornication was prescribed in order that the wife might be corrected by means of that punishment. Now a corrective punishment is not required when amendment has already taken place. Wherefore, if the wife repent of her sin, her husband is not bound to put her away: whereas if she repent not, he is bound to do so, lest he seem to consent to her sin, by not having recourse to her due correction.

Reply to Objection 1: The wife can be corrected for her sin of fornication not only by this punishment but also by words and blows; wherefore if she be ready to be corrected otherwise, her husband is not bound to have recourse to the aforesaid punishment in order to correct her.

Reply to Objection 2: The husband seems to consent with her when he retains her, notwithstanding that she persists in her past sin: if, however, she has mended her ways, he does not consent with her.

Reply to Objection 3: She can no longer be called a harlot since she has repented of her sin. Wherefore her husband, by being joined to her, does not become a member of a harlot. We might also reply that he is joined to her not as a harlot but as his wife.

Reply to Objection 4: There is no parallel, because the effect of consanguinity is that there is no marriage tie between them, so that carnal intercourse between them becomes unlawful. Whereas fornication does not remove the said tie, so that the act remains, in itself, lawful, unless it become accidentally unlawful, in so far as the husband seems to consent to his wife's lewdness.

Reply to Objection 5: This permission is to be understood as an absence of prohibition: and thus it is not in contradistinction with a precept, for that which is a matter of precept is also not forbidden.

Reply to Objection 6: The wife sins not only against her husband, but also against herself and against God, wherefore her husband cannot entirely remit the punishment, unless amendment has followed.

Whether the husband can on his own judgment put away his wife on account of fornication?

Objection 1: It would seem that the husband can on his own judgment put away his wife on account of fornication. For when sentence has been pronounced by the judge, it is lawful to carry it out without any further judgment. But God, the just Judge, has pronounced this judgment, that a husband may put his wife away on account of fornication. Therefore no further judgment is required for this.

Objection 2: Further, it is stated (Mat. 1:19) that Joseph . . . being a just man . . . "was minded to put" Mary "away privately." Therefore it would seem that a husband may privately pronounce a divorce without the judgment of the Church.

Objection 3: Further, if after becoming cognizant of his wife's fornication a husband has marital intercourse with his wife, he forfeits the action which he had against the adulteress. Therefore the refusal of the marriage debt, which pertains to a divorce, ought to precede the judgment of the Church.

Objection 4: Further, that which cannot be proved ought not to be submitted to the judgment of the Church. Now the crime of fornication cannot be proved, since "the eye of the adulterer observeth darkness" (Job 24:15). Therefore the divorce in question ought not to be made on the judgment of the Church.

Objection 5: Further, accusation should be preceded by inscription [*Cf. SS, Q[33], A[7]], whereby a person binds himself under the pain of retaliation, if he fails to bring proof. But this is impossible in this matter, because then, in every event the husband would obtain his end, whether he put his wife away, or his wife put him away. Therefore she ought not to be summoned by accusation to receive the judgment of the Church.

Objection 6: Further, a man is more bound to his wife than to a stranger. Now a man ought not to refer to the Church the crime of another, even though he be a stranger, without previously admonishing him privately (Mat. 18:15). Much less therefore may the husband bring his wife's crime before the Church, unless he has previously rebuked her in private.

On the contrary, No one should avenge himself. But if a husband were by his own judgment to put away his wife on account of fornication, he would avenge himself. Therefore this should not be done.

Further, no man is prosecutor and judge in the same cause. But the husband is the prosecutor by suing his wife for the offense she has committed against him. Therefore he cannot be the judge, and consequently he cannot put her away on his own judgment.

I answer that, A husband can put away his wife in two ways. First as to bed only, and thus he may put her away on his own judgment, as soon as he has evidence of her fornication: nor is he bound to pay her the marriage debt at her demand, unless he be compelled by the Church, and by paying it thus he nowise prejudices his own case. Secondly, as to bed and board, and in this way she cannot be put away except at the judgment of the Church; and if she has been put away otherwise, he must be compelled to cohabit with her unless the husband can at once prove the wife's fornication. Now this putting away is called a divorce: and consequently it must be admitted that a divorce cannot be pronounced except at the judgment of the Church.

Reply to Objection 1: The sentence is an application of the general law to a particular fact. Wherefore God gave out the law according to which the sentence of the court has to be pronounced.

Reply to Objection 2: Joseph was minded to put away the Blessed Virgin not as suspected of fornication, but because in reverence for her sanctity, he feared to cohabit with her. Moreover there is no parallel, because then the sentence at law was not only divorce but also stoning, but not now when the case is brought to the Church for judgment. The Reply to the Third Objection is clear from what has been said.

Reply to Objection 4: Sometimes when the husband suspects his wife of adultery he watches her secretly that together with witnesses he may discover her in the sin of fornication, and so proceed to accusation. Moreover, if he has no evidence of the fact, there may be strong suspicions of fornication, which suspicions being proved the fornication seems to be proved: for instance if they be found together alone, at a time and place which are open to suspicion, or "nudas cum nuda."

Reply to Objection 5: A husband may accuse his wife of adultery in two ways. First, he may seek a separation from bed before a spiritual judge, and then there is no need for an inscription to be made under the pain of retaliation, since thus the husband would gain his end, as the objection proves. Secondly, he may seek for the crime to be punished in a secular court, and then it is necessary for inscription to precede, whereby he binds himself under pain of retaliation if he fail to prove his case.

Reply to Objection 6: According to a Decretal (Extra, De Simonia, cap. Licet), "there are three modes of procedure in criminal cases. First, by inquisition, which should be preceded by notoriety; secondly, by accusation, which should be preceded by inscription; [*Cf. SS, Q[33], A[7]] thirdly, by denunciation, which should be preceded by fraternal correction." Accordingly the saying of our Lord refers to the case where the process is by way of denunciation, and not by accusation, because then the end in view is not only the correction of the guilty party, but also his punishment, for the safeguarding of the common good, which would be destroyed if justice were lacking.

Whether in a case of divorce husband and wife should be judged on a par with each other?

Objection 1: It would seem that, in a case of divorce, husband and wife ought not to be judged on a par with each other. For divorce under the New Law takes the place of the divorce [repudium] recognized by the Old Law (Mat. 5:31,32). Now in the "repudium" husband and wife were not judged on a par with each other, since the husband could put away his wife, but not "vice versa." Therefore neither in divorce ought they to be judged on a par with each other.

Objection 2: Further, it is more opposed to the natural law that a wife have several husbands than that a husband have several wives: wherefore the latter has been sometimes lawful, but the former never. Therefore the wife sins more grievously in adultery than the husband, and consequently they ought not to be judged on a par with each other.

Objection 3: Further, where there is greater injury to one's neighbor, there is a greater sin. Now the adulterous wife does a greater injury to her husband, than does the adulterous husband to his wife, since a wife's adultery involves uncertainty of the offspring, whereas the husband's adultery does not. Therefore the wife's sin is the greater, and so they ought not to be judged on a par with each other.

Objection 4: Further, divorce is prescribed in order to punish the crime of adultery. Now it belongs to the husband who is the head of the wife (1 Cor. 11:3) to correct his wife, rather than "vice versa." Therefore they should not be judged on a par with each other for the purpose of divorce, but the husband ought to have the preference.

Objection 5: On the contrary, It would seem in this matter the wife ought to have the preference. For the more frail the sinner the more is his sin deserving of pardon. Now there is greater frailty in women than in men, for which reason Chrysostom [*Hom. xl in the Opus Imperfectum falsely ascribed to St. John Chrysostom] says that "lust is a passion proper to women," and the Philosopher says (Ethic. vii, 7) that "properly speaking women are not said to be continent on account of their being easily inclined to concupiscence," for neither can dumb animals be continent, because they have nothing to stand in the way of their desires. Therefore women are rather to be spared in the punishment of divorce.

Objection 6: Further, the husband is placed as the head of the woman in order to correct her. Therefore his sin is greater than the woman's and so he should be punished the more.

I answer that, In a case of divorce husband and wife are judged on a par with each other, in the sense that the same things are lawful or unlawful to the one as to the other: but they are not judged on a par with each other in reference to those things, since the reason for divorce is greater in one spouse than in the other, although there is sufficient reason for divorce in both. For divorce is a punishment of adultery, in so far as it is opposed to the marriage goods. Now as regards the good of fidelity to which husband and wife are equally bound towards each other, the adultery of one is as great a sin against marriage as the adultery of the other, and this is in either of them a sufficient reason for divorce. But as regards the good of the offspring the wife's adultery is a greater sin against marriage than the husband's wherefore it is a greater reason for divorce in the wife than in the husband: and thus they are under an equal obligation, but not for equal reasons. Nor is this unjust for on either hand there is sufficient reason for the punishment in question, just as there is in two persons condemned to the punishment of death, although one of them may have sinned more grievously than the other.

Reply to Objection 1: The only reason why divorce was permitted, was to avoid murder. And since there was more danger of this in men than in women, the husband was allowed to put away his wife by a bill of divorce, but not "vice versa."